

MEETING PROCEDURES

Meetings of the School Board shall follow clearly prescribed procedures to ensure the efficient and effective functioning of the Board consistent with all applicable laws.

A. Open Meeting. All meetings of the School Board and its committees shall be conducted in open session unless the Board or committee goes into a closed meeting in accordance with the Virginia Freedom of Information Act and this policy.

B. Closed Meeting. The School Board or its committees may go into a closed meeting for certain purposes specified in State law. Closed meetings shall be convened and thereafter certified by action of the Board or committee consistent with the requirements of the Freedom of Information Act. No vote may be taken in a closed meeting.

C. Participation When Absent For Personal Matter, Disability or Medical Condition, or To Provide Care to Family Member.

1. Electronic Participation When Quorum Physically Assembled. A School Board or committee member may participate in a meeting through electronic communication means from a remote location that is not open to the public. This policy shall be applied strictly and uniformly, without exception, to the entire membership and without regard to the identity of the member requesting remote participation or the matters that will be considered or voted on at the meeting. The following conditions must be met:

- a. A quorum of the School Board or committee is physically assembled at the primary or central meeting location; and for the purposes of determining whether a quorum is physically assembled, a person with a disability or a caregiver and uses remote participation, counts toward the quorum as if the individual was physically present.
- b. The School Board or committee makes arrangements for the voice of the remote participant to be heard by all persons at the primary or central meeting location.
- c. The School Board or committee member identifies any individuals present with them when they are electronically participating in a School Board or committee meeting.

2. Types of Absences.

- a. Absence Due to Personal Matter. If a member of the public body holding the meeting notifies the Chair of the School Board or of the committee that such member is unable to attend the meeting due to a personal matter and identifies with specificity the nature of the personal matter, and the School Board or committee: (a) approves

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such member's participation by a majority vote of the members present; and (b) records in its minutes the specific nature of the personal matter and the remote location from which the member participated. The disapproval of a member's participation from a remote location shall be recorded in the minutes with specificity. Such participation by the member shall be limited each calendar year to two meetings or 25 percent of the meetings held per calendar year rounded up to the next whole number, whichever is greater. The 25 percent will be recalculated as meetings are added during the calendar year.

- b. Absence Due to Disability or Medical Condition. In the event that a School Board or committee member is unable to attend a meeting due to a temporary or permanent disability or other medical condition that prevents the member's physical attendance or a family member's medical condition that requires the member to provide care for such family member, thereby preventing the member's physical attendance, the School Board or committee member must notify the Chair of the School Board or committee upon which the member serves if the member chooses to participate remotely. The School Board or committee approves by majority vote, records this fact and the remote location from which the member participated in its minutes. There are no time limits to this type of absence; however, the School Board or committee Chair may request periodic updates on the School Board member's condition if it is temporary.

3. Exceptions. No member shall be permitted to participate by electronic communications from a remote location in any student disciplinary appeal hearing or administrative appeals proceeding.

D. Quorum Not Physically Assembled.

1. The public body may meet by electronic communication means without a quorum physically assembled at one location when the Governor has declared a state of emergency in accordance with Va. Code § 44-146.17, or the locality in which the School Board is located has declared a local state of emergency pursuant to Va. Code § 44-146.21, provided:

- a. The catastrophic nature of the declared emergency makes it impracticable or unsafe to assemble a quorum in a single location; and
- b. The purpose of the meeting is to provide for the continuity of operations of the School Board or the discharge of its lawful purposes, duties, and responsibilities.

2. If it holds a meeting pursuant to this section, the public body:

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- a. Gives public notice using the best available method given the nature of the emergency contemporaneously with the notice provided members of the School Board;
- b. Makes arrangements for public access to the meeting through electronic communications means, including videoconferencing if already used by the public body; and
- c. Provides the public with the opportunity to comment at those meetings when public comment is customarily received.

3. For any meeting conducted pursuant to this section, the nature of the emergency, the fact that the meeting was held by electronic communication means and the type of electronic communication means by which the meeting was held are stated in the minutes of the meeting.

E. Public Participation.

1. Citizens are encouraged to attend meetings of the School Board and to communicate their views to the Board at times provided for public comments. Spontaneous discussion from citizens during other times shall not be permitted.

2. Rules for public participation at Board meetings, including public hearings, are contained in Policy 2520.

F. Recessed Meetings. Meetings may be recessed and resumed at a later time or date. Such meetings shall be a continuation of an established meeting, not a new one.

G. Adjourned Meetings. Any meeting of the School Board may be adjourned to specified time and place.

H. Adjournment. All meetings, including public hearings, are expected to end by 10:00 p.m. If it appears that the agenda or other purpose of the meeting will not be completed by 10:00 p.m., the School Board will caucus and determine whether it should adjourn at 10:00 p.m., set a later time for adjournment, or set a future date for continuation of the meeting.

[Former Policy 2-22]

Adopted: 10/12/76

Revised: 8/27/85, 6/22/93, 5/25/10, 6/12/12, 10/22/13, 9/23/14, 12/13/16, 8/10/21

Current Revision: 2/13/25

Leg Refs: Code of Virginia §§ [2.2-3708.2](#), [2.2-3708.3](#), [2.2-3710](#), [2.2-3711](#), [2.2-3712](#), [22.1-72](#), [44-146.17](#), and [44-146.21](#)

Cross Ref: Policy [2520](#), Participation by the Public